

Motion to Compel Further Responses to Requests for Production of Documents, Set One, Number 8, to Defendant Go Go Bake Corporation and Request for Monetary Sanctions Against Go Go Bake Corporation and Felipe Jeronimo Matias

Plaintiff's motion to compel further responses to Requests for Production of Documents, Set One, Number 8 is GRANTED. Defendant is to provide a further code-compliant verified response to Requests for Production of Documents, Set One, Number 8 within ten (10) days of this court's order.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$1,000 are to be paid to Plaintiff within fifteen (15) days of this court's order.

In addition, Defendant is ordered to pay Plaintiff \$2,544 for court reporter and videographer fees incurred as a result of Defendant Matias' failure to appear at his duly noticed deposition on April 8, 2026. These costs are to be paid to Plaintiff within fifteen (15) days of this court's order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Motion for Attorney's Fees and Costs Pursuant to CCP 425.16 (Anti- SLAPP)

Defendant's motion for attorney's fees and costs is GRANTED.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) "The amount of an attorney fee award under the anti-SLAPP statute is computed by the trial court in accordance with the familiar 'lodestar' method." (*Cabral v. Martins* (2009) 177 Cal.App.4th 471, 491 [citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135-1136.]) "Under that method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hours rate prevailing in the community of similar work." (*Ibid.*)

Counsel for Defendant seeks to set the lodestar at \$6,336 and requests an additional \$112.59 for costs. A trial court may not rubberstamp a request for attorney's fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) Here, the total of 12.8 hours billed for the motion are reasonable.

The court must then look at the hourly rate. The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Accordingly, following a careful review of the work required the court finds it reasonable to reduce the hourly rate from \$495 to \$350.

With the adjustment to the hourly rate, the lodestar is set at \$4,480.

Costs are awarded in the amount of \$112.59. Total attorney's fees and costs are awarded in the amount of \$4,592.59. The attorney's fees and costs are to be paid within thirty (30) days of this court's order.

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Christopher Bettencourt vs San Luis Delta Mendota Water Authority

Demurrer to the Complaint

Defendant's demurrer to Plaintiff's complaint is OVERRULED IN PART and SUSTAINED IN PART.

A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.)

For this reason, the court will not decide questions of fact on demurrer. (See *Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.)

Defendant's demurrer based on the statute of limitations is OVERRULED. Plaintiff has alleged timely compliance with the Government Claims Act.

Defendant's demurrer to the first, third, fourth, fifth, and sixth causes of action are SUSTAINED WITH LEAVE TO AMEND, on the basis of failure to state facts sufficient to constitute a cause of action.

Defendant's demurrer to the second cause of action is SUSTAINED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA. Wrongful termination in violation of public policy is not a proper cause of action against a public entity.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

Motion to Strike Portions of Plaintiff's Complaint

Defendant's motion to strike is GRANTED IN PART and DENIED IN PART.

The motion to strike the phrase "punitive damages" from Paragraph 75 (Complaint ¶ 75, 10:18) is GRANTED WITHOUT LEAVE TO AMEND. Punitive damages are not available against a public entity.

The motion to strike the phrase "punitive damages" from Paragraph 82 (Complaint ¶ 82, 11:13) is GRANTED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA.

The motion to strike Plaintiff's prayer for relief at Number 6 (Complaint, No. 6, 14:9) is GRANTED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA.
